BUREAU OF PRINTS & ENGRAVING
MAR 3 1 1919
DEPARTMENT OF STATE

ORDER BY FRANK L. POLK

UNDER AUTHORITY OF EXECUTIVE ORDER OF DECEMBER 8, 1918.

AN ORDER CONCERNING THE CONVEYANCE AND TRANSFER OF CERTAIN RIGHTS, PRIVILEGES AND INTERESTS IN AND TO CERTAIN PROPERTY MORE PARTICULARLY HEREINAFTER DESCRIBED, DETERMINED TO BELONG TO, OR TO BE HELD FOR, BY, ON ACCOUNT OF, OR ON BEHALF OF, OR FOR THE BENEFIT OF PERSONS DETERMINED TO BE ENEMIES NOT HOLDING A LICENSE OR LICENSES GRANTED BY THE PRESIDENT WITHIN THE PURVIEW OF THE "TRADING WITH THE ENEMY ACT" AND THE AMENDMENTS THERETO

By virtue of the authority vested in the President by an Act of Congress entitled "An Act to Define, Regulate and Punish Trading with the Enemy and for Other Purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendments to said Act embodied in "An Act Making Appropriations to Supply Urgent Deficiencies in Appropriations for the Fiscal Year Ending June 30, 1918, and Prior Fiscal Years on Account of War Expenses and for Other Purposes", approved March 28, 1918, and the amendments to said Act embodied in "An Act Making Appropriations to Supply Deficiencies in Appropriations for the Fiscal Year Ending June 30, 1919, and Prior Fiscal Years on Account of War Expenses and for Other Purposes", approved November 4, 1918, to make certain orders, such as that herein contained, which authority has been delegated to me

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by the Executive Order No. 3016 and signed by the President on the 3rd day of December, 1918, I hereby make the following rule, determination, and order:

The Alien Property Custodian may transfer and convey to the American Radio Company, a corporation organized and existing under and by virtue of the laws of the State of Delaware, all the right, title and interest formerly of Hochfrequenz-Maschinen Aktiengesellschaft fur Drahtlose Telegraphie, a German corporation (hereinafter referred to as HOMAG) and/or of Rudolph Goldschmidt, in and to the following described property, acquired by and now vested in the Alien Property Custodian by virtue of his requirements, upon such terms and conditions as to the Alien Property Custodian or his duly authorized agent shall seem proper:

Every right, title and interest (formerly held by Hochfrequenz-Maschinen Aktiengesellschaft fur Drahtlose Telegraphie, a German corporation, and/or Rudolph Goldschmidt, of Charlottenberg, Germany) of which the Alien Property Custodian is seized and possessed by virtue of his requirements:

1. In and to the real estate situated in the State of New Jersey, bounded and described as follows:

"BEGINNING at a stone standing on the East side of the road leading from Tuckerton to Osborn's Island at the distance of 22 feet from the center thereof and at the distance of 2050 feet from the center of the bridge over Big Creek and on a course of North 39 degrees and 45 minutes East, from said bridge over said creek and the northeast corner of Mc Keever's Fish Factory on Crab Island bears South 84 degrees 30 minutes East, and the center of the

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hummock below the mouth of Tuckerton Creek bears North 71 degrees 15 minutes East; and from said center stone so located on a due westerly course the distance of 1650 feet to a point in the outer line of the circle herein described; thence extending along the line of said circle at a uniform distance of 1650 feet from said center stone in a Southerly Easterly Northerly and Westerly directions to the point in said circle first mentioned; thence extending on a due Easterly course the distance of 1650 feet to the said center stone and place of beginning, the said tract of land lying and being entirely within a circle of 1650 feet from the said center stone and containing 197 35/100 acres;

Excepting all that part within said circle lying Easterly of a line 5 feet distant from the Westerly side of Willett's Thoroughfare and Headley's Creek; being a part of said George A. Mott's survey."

"Also another tract of land outside the circle above described, beginning at the East Edge of the bridge down the center of the road over Osborn's creek; thence (1) down the edge of the Easterly side of the bank of said creek the several courses thereof to the mouth of Headley's Creek; thence (2) up said Headley's creek the several courses thereof till it strikes the Parker Line; thence (3) up the Parker Line till it strikes the circle as above mentioned; thence (4) following the said circle to the center of the road above mentioned; thence (5) down the said road to the place of beginning."

2. In and to the wireless telegraph station and other buildings and structures erected upon the premises last before mentioned, together with all apparatus, machinery, instruments, tools, equipment, material and supplies in, or connected with, or appurtenant to said station, buildings and structures, and all books, accounts, estimates, data, receipts, paper, documents, drawings, designs, plans, specifications, licenses, letters and other writings relating to the same.

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3. In and to a contract dated May 24, 1912, between Hochfrequenz Maschinen Aktiengesellschaft fur Drahtlose Telegraphie, and the company C. Lorenz Aktiengesellschaft, of Berlin.

4. In and to any amount due or owing by Compagnie Universelle de Telegraphie et de Telephone sans Fil (hereinafter called CUTT) to Hochfrequenz Maschinen Aktiengesellschaft fur Drahtlose Telegraphie, arising out of the construction and installation of the aforesaid radio telegraphic station and other buildings and structures referred to, as well as all apparatus, machinery, instruments, tools, equipment, material and supplies in, or connected with, or appurtenant to such station, buildings and structures, and in respect of the maintenance, upkeep and operation thereof, to September 7, 1914.

5. In and to an agreement made September 30, 1912, between Hochfrequenz Maschinen Aktiengesellschaft fur Drahtlose Telegraphie and CUTT, in and to any claim or claims arising therefrom in favor of Hochfrequenz Maschinen Aktiengesellschaft fur Drahtlose Telegraphie or Rudolph Goldschmidt.

6. In and to the following letters patent of the United States:

Patent No.	Date of Issue	Title
999,987	August 8, 1911.	APPARATUS FOR PRODUCING HIGH FREQUENCY CURRENTS
1,104,257	July 21, 1914.	HIGH FREQUENCY GENERATOR
1,104,256	July 21, 1914.	APPARATUS FOR AND METHOD OF RECEIVING ELECTRIC WAVES
1,043,047	October 29, 1912.	ROTOR FOR ELECTRIC MACHINES
1,043,923	November 12, 1912.	STRENGTHENING ELECTRIC ALTERNATING CURRENTS
1,087,113	February 17, 1914.	MACHINE FOR RECEIVING ELECTRIC WAVES
1,088,018	February 24, 1914.	MEANS FOR WORKING MICROPHONES IN PARALLEL
1,207,744	December 12, 1916.	ASYNCHRONOUS MOTOR

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7. And in and to all claims and demands at law or in equity for the past infringement thereof, except claims and demands against the Government of the United States or any of its departments.

My reasons for the foregoing determination, order, rule and regulation are that evidence has been submitted to me

(a) That by virtue of a contract entered into between HOMAG and CUTT, dated September 30, 1918, and the payment of 2,500,000 francs recited therein, CUTT became the beneficial owner of the Tuckerton land and station, and the patents, patent rights, and other rights and property referred to above; that the legal effect of said contract was that of a present conveyance or bill of sale as of September 30, 1912, of the station (then incomplete) and the patents and other rights and property to CUTT; that thereafter the only rights of HOMAG and Goldschmidt in connection with said construction were the right to compensation for the construction and installation of the station under Article VII of said contract, which by its terms limited the amount of CUTT's maximum liability to 2,000,000 francs; that the sums heretofore paid by CUTT and HOMAG under said contract amount to 1,518,443.10 francs;

(b) That the only property of any substantial value taken over by the Alien Property Custodian by virtue of the requirement referred to above is the claim of HOMAG to the payment of an unascertained amount under Article VII of the said contract between HOMAG and CUTT, and as the amount

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due on this claim is an unascertained amount, it is impossible to sell the claim to the best advantage at public sale after public or other advertisement;

(c) That CUTT is a corporation organized under the laws of the Republic of France, and managed and controlled by officers and directors, none of whom are enemies of the United States; and that substantially all of its capital stock is owned by parties who are citizens of countries not at enmity with the United States;

(d) That the American Radio Company referred to herein is a corporation of the State of Delaware, incorporated at the instance of CUTT, and CUTT is the beneficial owner of all of the stock of said company and has approved of the transfer and conveyance to said American Radio Company of all the property now held by the Alien Property Custodian by virtue of his requirements aforesaid.

Frank L. Polk

Washington, D. C.
March 24, 1919.

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